IN THE UNITED STATES DISTRICT COURT
FOR THE MIDDLE DISTRICT OF ALABAMA
SOUTHERN DIVISION

NUTRIEN AG SOLUTIONS, INC., Plaintiff, v. TROY FILLINGIM, individually; KAELYN FILLINGIM, individually; FILLINGIM FARMS, INC., a corporation; and FLINT FARMS, LLC, a limited liability company, Defendants.	) Case No.: 1:25-cv-00302-RAH-SMD

BRIEF IN SUPPORT OF MOTION TO DISMISS DEFENDANTS' AMENDED COUNTERCLAIM

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Nutrien Ag Solutions, Inc. ("Nutrien") submits this Brief in Support of its contemporaneously filed Motion to Dismiss Defendants' Amended Counterclaim pursuant to Rule 12(b)(6) of the Federal Rules of Civil Procedure as follows:

INTRODUCTION

In their amended answer, Troy Fillingim, Kaelyn Fillingim, Fillingim Farms, Inc., and Flint Farms, LLC (collectively, "Defendants") submitted an amended counterclaim alleging that Nutrien is liable to them for breach of contract, unjust enrichment, fraud and deceit, declaratory judgment, accounting and other equitable relief, negligence, fraudulent inducement, and deceptive trade practices. (Doc. 37).

As background, this is an action for breach of promissory notes and security agreements executed by Defendants, and for breach of an open account for the sale of various agricultural products.

RELEVANT PROCEDURAL HISTORY

Nutrien initiated this action by filing a Complaint on April 23, 2025. (Doc. 1). Defendants Kaelyn Fillingim and Flint Farms, LLC were served with the summons and complaint on June 4, 2025. (Docs. 6-7). On August 25, 2025, Nutrien filed a Motion to Dismiss Defendant's Counterclaim and a brief in support of said motion. (Docs. 19-20). On August 28, 2025, this Court held a telephone conference to address Nutrien's Motion to Dismiss Defendants' Counterclaim. On August 29, 2025, this Court entered an Order instructing Defendants to file a motion for leave to amend with their proposed amended counterclaim. (Doc. 24). On November 19 2025, Defendants filed an [Amended] Answer and Counterclaim (the "Amended Counterclaim"). (Doc. 37). Nutrien now timely moves to dismiss the Amended Counterclaim.

STANDARD OF REVIEW

When considering a Rule 12(b)(6) motion to dismiss for failure to state a claim, the court construes the complaint in the light most favorable to the plaintiff and accepts the well-pled factual allegations as true. *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009). In contrast, allegations that are conclusory in nature and that lack factual

662, 678 (2009). In contrast, allegations that are conclusory in nature and that lack support are not to be credited. *Id.* In evaluating the sufficiency of a plaintiff's pleadings, a court can make reasonable inferences in the plaintiff's favor, but it is not required to draw the plaintiff's inferences. *Aldana v. Del Monte Fresh Produce, N.A., Inc.*, 416 F.3d 1242, 1248 (11th Cir. 2005). Similarly, "unwarranted deductions of fact" in a complaint are not admitted as true for the purpose of testing the sufficiency of a plaintiff's allegations. *Id.* (cleaned up); *see Iqbal*, 556 U.S. at 681; *Bell Atl. Corp. v. Twombly*, 550 U.S. 544, 554-55 (2007).

Thus, to survive a motion to dismiss, the complaint must contain factual matter sufficient to state a claim for relief "that is plausible on its face." *Twombly*, 550 U.S. at 570. A claim is plausible on its face "when the plaintiff pleads factual content that allows the court to draw the reasonable inference that the defendant is liable for the misconduct alleged." *Iqbal*, 556 U.S. at 678. Simply stated, the *Twombly-Iqbal* standard requires a plaintiff to allege enough facts in a complaint to at least "raise a right to relief above the speculative level." *Twombly*, 550 U.S. at 555. In applying the *Twombly-Iqbal* plausibility standard, courts must follow a "two-pronged approach of first separating out the complaint's conclusory legal allegations and then determining whether the remaining well-pleaded factual allegations, accepted as true, plausibly give rise to an entitlement to relief." *Franklin v. Curry*, 738 F.3d 1246, 1251 (11th Cir. 2013).

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ARGUMENT

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Pursuant to Rule 12(b)(6) of the Federal Rules of Civil Procedure, Defendants' Amended Counterclaim should be dismissed as it remains deficient. Although this Court afforded Defendants another opportunity to allege facts to survive a motion to dismiss, their Amended Counterclaim remains a shotgun pleading.

Additionally, several of the Defendants' claims in the Amended Counterclaim fail to state any claim upon which relief can be granted, causing them to fail as a matter of law. Moreover, Defendants asserts equitable remedies where adequate legal remedies exist, and their fraud-based claims do not meet the heightened pleading standard required under Rule 9(b). For these reasons, and as further detailed below, the Amended Counterclaim should be dismissed in its entirety.

I. THE AMENDED COUNTERCLAIM IS A SHOTGUN PLEADING AND ALL CLAIMS MUST BE DISMISSED.

I. THE AMENDED COUNTERCLAIM IS A SHOTGUN PLEADING AND ALL CLAIMS MUST BE DISMISSED.

Pursuant to Rule 12(b)(6) of the Federal Rules of Civil Procedure, the Amended Counterclaim is due to be dismissed as it is a shotgun pleading. "Shotgun pleadings" are complaints that violate either Rule 8(a)(2) or Rule 10(b) of the Federal Rules of Civil Procedure. *See Weiland v. Palm Beach Cnty. Sheriff's Office*, 792 F. 3d 1313, 1320 (11th Cir. 2015). A complaint must contain "a short and plain statement of the claim showing that the pleader is entitled to relief[.]" FED. R. CIV. P. 8(a)(2); *see Barmapov v. Amuial*, 986 F.3d 1321, 1324 (11th Cir. 2021).

Additionally, a plaintiff is required to "state its claims . . . in numbered paragraphs, each limited as far as practicable to a single set of circumstances." FED. R. CIV. P. 10(b); *see Barmapov*, 986 F.3d at 1324. Further, "[i]f doing so would promote clarity," Rule 10(b) also requires that "each claim founded on a separate transaction or occurrence ... be stated in a separate count ...." *Id.* The "self-evident" purpose of these rules is "to require the pleader to present his claims discretely and succinctly, so that[ ] his adversary can discern what he is claiming and frame a responsive pleading." *Barmapov*, 986 F.3d at 1324 (quoting *Weiland*, 792 F.3d at 1320)).

Shotgun pleadings are flatly forbidden by the Federal Rules of Civil Procedure. *Barmapov*, 986 F.3d at 1324. According to the Eleventh Circuit, such pleadings are "calculated to confuse the 'enemy,' and the court, so that theories for relief not provided by law and which can prejudice an opponent's case, especially before the jury, can be masked." *Barmapov*, 986 F.3d at 1324 (quoting *Weiland*, 792 F.3d at 1320).

Here, the Amended Counterclaim is a shotgun pleading as it is "replete with conclusory, vague, and immaterial facts not obviously connected to any particular cause of action." *Weiland*, 792 F.3d at 1322. *See, e.g.*, *Chudasama v. Mazda Motor Corp.*, 123 F.3d 1353, 1359 n.9 (11th Cir. 1997) (holding that a complaint is a shotgun pleading when the "reader of the complaint must speculate as to which factual allegations pertain to which count."). Specifically, the Amended

cause of action." *Weiland*, 792 F.3d at 1322. *See, e.g., Chudasama v. Mazda Motor Corp.*, 123 F.3d 1353, 1359 n.9 (11th Cir. 1997) (holding that a complaint is a shotgun pleading when the "reader of the complaint must speculate as to which factual allegations pertain to which count."). Specifically, the Amended Counterclaim spans more than fifty pages and includes hundreds of paragraphs of factual allegations, yet it fails to clearly link those allegations to the specific counts asserted and which Defendants the factual allegations apply to. For example, the counterclaim contains extensive narrative about historical farming practices, acreage farmed by unrelated entities, and alleged discrepancies in invoices, but does not explain how these facts support Defendants' individual claims, forcing both Nutrien and the Court to speculate as to which allegations pertain to which claim.

Additionally, allegations regarding promises and misrepresentations by Nutrien employees are scattered throughout the Amended Counterclaim, but it does not identify which statements relate to the unjust enrichment claim, fraud claim, or fraudulent inducement claim, nor does it clarify which Defendant allegedly relied on those statements.

As a result, Defendants have failed to state claims upon which relief can be granted, and the Amended Counterclaim is a shotgun pleading that must be dismissed in its entirety. *See Barmapov*, 986 F.3d at 1325-26.

II. DEFENDANTS TROY FILLINGIM, FILLINGIM FARMS, INC. AND FLINT FARMS, LLC HAVE WAIVED EACH CLAIM ALLEGED IN THE AMENDED COUNTERCLAIM THAT ARISES FROM ALLEGED CONDUCT PRIOR TO THE EXECUTION OF THE OPERATIVE PROMISSORY NOTES.

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Under Alabama law, unless fraud is involved, "a release supported by a valuable consideration, unambiguous in meaning, will be given effect according to the intention of the parties . . . ." *Boggan v. Waste Away Grp., Inc.*, 585 So. 2d 1357, 1359 (Ala. 1991) (quoting *Jehle–Slauson Const. Co.*, supra, at 719–20)). *See also* Ala. Code § 12-21-109 ("All receipts, releases and discharges in writing ... must have effect according to their terms and the intentions of the parties thereto."); *Nix v. Henry C. Beck Co.*, 572 So.2d 1214, 1217 (Ala. 1990).

According to the Alabama Supreme Court, a general release applies to both contract and tort claims. *See Roberson Excavation, Inc. v. Dale Cnty. Water Auth.*, 1357, 1359 (Ala. 1991) (quoting *Jehle–Slauson Const. Co.*, supra, at 719–20)). *See* No. 1:15-CV-939-MHT, 2016 WL 5799051, at *7 (M.D. Ala. Sept. 9, 2016), *report and recommendation adopted*, No. 1:15CV939-MHT, 2016 WL 5843214 (M.D. Ala. Oct. 3, 2016) (quoting *Nix*, 572 So. 2d at 1216)) ("With a general release, the parties obviously intended to release all claims – contract claims as well as tort claims ... If the parties had wanted to limit the release, they could have expressly reserved and excepted certain claims, including tort claims."). Moreover, when parties to a contract agree to settle a dispute any claims that arise from that dispute is moot. *See Compass Bank v. Limon*, 464 F. App'x 782, 787–88 (11th Cir. 2012) (affirming dismissal when counterclaimants executed a document that contained a release and "expressly waived their ability to counterclaim."); *ITT Rayonier Inc. v. United States*, 651 F.2d 343, 343 (5th Cir.1981) ("Generally settlement of a dispute between parties renders moot any case between them growing out of that dispute.")

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Here, in forbearance of pursuing immediate collection against Defendants Fillingim Farms and Troy Fillingim, Nutrien entered into secured promissory notes with Troy Fillingim (the "Troy Note") on September 27, 2023; Fillingim Farms (the "Fillingim Farms Note") on December 7, 2023; and Flint Farms (the "Flint Farms Note") on December 7, 2023 (collectively, the "Notes"). The Notes contain, in pertinent part, the following provisions:

> **Acknowledgement of Debt**: Borrower acknowledges the Principal and Interest reflected in this Note are accurate and that he is responsible for paying the indebtedness.
>
> **Waivers:** Borrower, to the extent not prohibited by applicable law or regulation, hereby jointly and severally, (a) waives as to this debt or any renewal, modification, extension or refinancing thereof all rights of exemption under the Constitution or laws of Alabama or any other state as to real or personal property; (b) waives demand, presentment, notice of non-payment, protest, notice of protest, notice of dishonor, all other notice, suit against any party, diligence in collection of this Note, the release of any party primarily or secondarily liable thereon or any collateral pledged as security, and all other requirements necessary to hold Borrower liable hereunder; (c) agrees and consents to any one of more extensions or postponements of time of payment of this Note or any other indulgences with respect hereto, without notice thereof to any of them, and without release of liability as to any Borrower or any of them; and (d) waives and releases any defense to the Obligation that exists or has existed at any time in the past including but not limited to any offset or claim for damages against Lender.

(*See* Complaint, Doc. 1-1, Ex. B p.3, Ex. D p.3, Ex. F p.3) (emphasis added). The language regarding Defendants' release and waiver of claims regarding their obligation to pay the debt owed under the Notes is clear and comprehensive and encompasses each claim asserted by Defendants to the extent their claims relate to the alleged actions or inaction of Nutrien prior to the operative dates. More specifically, it appears Defendants' entire breach of contract claim relates to events occurring prior to September and December 2023, and large portions of the remaining claims relating to facts occurring prior to the operative dates of the Notes.

III. DEFENDANTS HAVE FAILED TO STATE A CLAIM FOR BREACH OF CONTRACT.

[Excerpt: Sections III and IV, with their subsections, are omitted here.]

To establish a prima facie breach of contract claim, a party must plausibly allege: "(1) a valid contract binding upon the parties; (2) the plaintiff's performance under the contract; (3) the defendant's nonperformance; and (4) resulting damages." *Forsyth Consulting, Inc. v. Zoe's Kitchen, Inc.*, No. 2:14-CV-02349-JHE, 2017 WL 1349176, at *9 (N.D. Ala. Apr. 10, 2017) (quoting *Shaffer v. Regions Fin. Corp.*, 29 So. 3d 872, 880 (Ala. 2009)). As for the first element, a valid contract consists of "an offer and an acceptance, consideration, and mutual assent to the essential terms of the agreement." *Forsyth*, 2017 WL 1349176 at *8 (quoting *Armstrong Bus. Servs., Inc. v. AmSouth Bank*, 817 So. 2d 665, 673 (Ala. 2001)).

In the instant action, Defendants' breach of contract claim is due to be dismissed because they have failed to allege their own performance under the

CONCLUSION

For the foregoing reasons, Defendants' Amended Counterclaim is due to be dismissed in its entirety.

Respectfully submitted this 17th day of December, 2025.

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CERTIFICATE OF SERVICE

I hereby certify that a true and correct copy of the foregoing has been e-filed using the CM/ECF system, which will send notification of such filing to the following counsel of record, on this 17th day of December, 2025:

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